

All India Council for Technical Education (Grant of Approvals for the Technical Institutions) Regulations, 2020

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All India Council for Technical Education (Grant of Approvals for the Technical Institutions) Regulations, 2020

UNION OF INDIA

India

All India Council for Technical Education (Grant of Approvals for the Technical Institutions) Regulations, 2020

Rule

ALL-INDIA-COUNCIL-FOR-TECHNICAL-EDUCATION-GRANT-OF-APPROVALS-FOR-THE-TECHNICAL-INSTITUTIONS-REGULATIONS-2020 of 2020

Published on 4 February 2020

Commenced on 4 February 2020

[This is the version of this document from 4 February 2020.]

[Note: The original publication document is not available and this content could not be verified.]

All India Council for Technical Education (Grant of Approvals for the Technical Institutions) Regulations, 2020

Published vide Notification F. No. AB/AICTE/REG/2020, dated 04.02.2020

Last Updated 14th February, 2020

F. No. AB/AICTE/REG/2020. - In exercise of its powers conferred under sub-section (1) of Section 23 read with Sections 10 and 11 of the All India Council for Technical Education Act, 1987 (52 of 1987

) and in supersession of the All India Council for Technical Education (Grant of Approvals for the Technical Institutions)

Regulations, 2018 notified in the Gazette of India vide F. No: AB/AICTE/REG/2018 dated 31st December, 2018, the AICTE makes the following Regulations:

Preamble. - To regulate/ facilitate in an organized manner, the Technical Institutions in maintaining quality and to follow the norms consistent with the ideals of AICTE and further to create an enabling environment for the Technical Institutions to become high quality Institutions, AICTE, in exercise of powers conferred under sub section (1) of Section 23 read with Sections 10 and 11 of the All India Council for Technical Education Act, 1987, hereby makes the following Regulations namely:-

1.

Short Title, Application and Commencement.

- 1.1 These Regulations shall be called the All India Council for Technical Education (Grant of Approvals for the Technical Institutions) Regulations, 2020.

1.2

These Regulations are applicable for the applications submitted by the Institutions/ Institutions Deemed to be University offering/ propose to offer a Technical Programme at Diploma/ Post Diploma Certificate/ Under Graduate Degree/ Post Graduate Diploma/ Post Graduate Degree Level as under:

- a. Setting up a new Technical Institution;
- b. Extension of Approval based on Self-Disclosure;
- c. Introduction/ Continuation of seats for Non Resident Indian(s);
- d. Change of Site/ Location;
- e. Conversion of Diploma Level into Degree Level and vice-versa;
- f. To start new Programme/ Level in the existing Institutions;
- g. Merger of Institutions under the same Trust/ Society/ Company operating in the same Campus;
- h. Extension of Approval of the existing Institutions after a break in the preceding Academic Year/ Restoration of Intake;
- i. To start Diploma/ Degree in Pharmacy in existing Institutions;
- j. Introduction/ Continuation of supernumerary seats for Foreign Nationals/ Overseas Citizen of India (OCI)/ Persons of Indian Origin (PIO)/Children of Indian Workers in Gulf Countries;
- k. Conversion of Women's Institution into Co-ed Institution and vice-versa;
- l. Increase in Intake/ Additional Course(s);
- m. Introduction of Integrated/ Dual Degree Course;
- n. Closure of the Institution;
- o. Conversion of PGDM Course(s) into MBA Course(s) and vice-versa;
- p. Closing of MCA Course and Introduction of MBA/ PGDM Course and vice-versa;
- q. Conversion of Courses into allied Vocational Courses;
- r. Introduction/ Continuation of Fellow Program in Management;
- s. Change in the Name of the Course(s)/ Merger of the Courses/ Reduction in Intake/ Closure of Programme(s)/ Course(s);
- t. Change in the Name of the Institution or affiliating University/Board/ Change of type of Institution;
- u. Change in the Minority Status of the Institution;
- v. Change in the Name of the Bank;
- w. Change in the Name of the Trust/ Society/ Company;
- x. Extended EoA;
- y. Collaboration and Twinning Programme between Indian and Foreign Universities/ Institutions in the field of Technical Education, Research and Training;
- z. Introduction of Open and Distance Learning Courses/ Extension of Approval of the Courses/ Increase in Approved Intake in the Courses/ Introduction of new Courses/ Closure of Courses in Open and Distance Learning mode; and aa. Introduction of Vocational Education Courses/ Extension of Approval of the Courses/ Increase in Approved Intake in the Courses/ Introduction of new Courses/ Closure of Vocational Courses.

1.3

These Regulations shall come into force with effect from the date of their publication in the Official Gazette.

1.4

In compliance to the order dated 08.11.2019 passed by the Hon'ble Supreme Court of India in CA No.364/ 2005, for the

Institutions intending to offer/ offering Courses in Architecture Programme, approval by the Council of Architecture is mandatory, however interested Institutions may apply to the AICTE for approval.

2.

Definitions.

- In these Regulations, unless the context otherwise requires

2.1

"Academic Year" means academic activities of the concerned affiliating University/ Board/ Technical Institution in a Year (Odd Semester followed by Even Semester).

2.2

"Act" means the All India Council for Technical Education Act, 1987 (52 of 1987

).

2.3

"Adjunct Faculty" means resource person as per the guidelines specified in the Approval Process Handbook.

2.4

"Affidavit" is a written sworn statement of fact voluntarily made by a deponent under an oath or affirmation administered by a person authorized to do so by Law. Such statement is witnessed as to the authenticity of the deponents signature by a taker of oaths, such as a Notary Public or Commissioner of Oaths.

2.5

"AICTE Web-Portal" means the Web site hosted by the Council at URL www.aicteindia.org.

2.6

"Applicant" is the one who makes an application to the Council for seeking any kind of approval under these Regulations.

2.7

"Approval Process Handbook (APH)" is a Handbook published by AICTE, prescribing norms and procedures for processing of applications submitted for grant of various approvals from time to time.

2.8

"Approved Institution" means the Technical Institution approved by the Council.

2.9

"Approved Intake" means the maximum number of students that can be admitted in a Course (excluding the Supernumerary Seats) as approved by the Council.

2.10

"Autonomous Institution" means an Institution to which autonomy is granted by UGC and is designated to be so by the Statutes of Affiliating University/ Board or by AICTE to Standalone Institutions.

2.11

"Break in EoA" means break in the Extension of Approval of the Institution in the previous year(s).

2.12

"Build-Operate-Transfer (BOT)" means a project financing, wherein a private entity receives a concession from the public sector to finance, design, construct and operate a facility stated in the concession contract.

2.13

"Chairman" means the Chairman of AICTE as described under sub-section 4(a) of Section 3 of AICTE Act, 1987.

2.14

"Co-ed Institution" means the Institution admitting male, female and transgender students.

2.15

"Commission" means the University Grants Commission (UGC) established under Section 4 of the University Grants Commission Act, 1956.

2.16

"Company" means a Company established/ registered under Section 8 of the Companies Act, 2013.

2.17

"Competent Authority for Admission" means an Organization that has, the legally delegated authority, capacity, or power to do admission to Technical Institutions in the State Government/ UT concerned.

2.18

"Compliance Report" means the Report submitted by the Technical Institution complying with the requirements as specified in the Approval Process Handbook for the deficiencies observed by Expert Visit Committee/ issues mentioned in the Show Cause Notice.

2.19

"Constituent College" means an Institution/ Department/ College/ School as a part of the University.

2.20

"Council" means All India Council for Technical Education established under Section 3 of the Act.

2.21

"Course" means one of the branches of learning in a Programme such as Civil Engineering, Mechanical Engineering, etc.

2.22

"Division" means

- a. A batch of a maximum of Sixty (60) seats in Diploma/ Under Graduate Degree Courses in Engineering and Technology/ Hotel Management and Catering Technology/ Post Graduate Courses in MCA/ PGCM/ PGDM/ MBA Programme, excluding supernumerary seats, if any;
- b. A batch of Sixty (60) seats in Diploma/ Under Graduate Degree Courses and to a maximum of Hundred (100) seats in Under Graduate Degree Courses in Pharmacy Programme, excluding supernumerary seats, if any;
- c. A batch of a maximum of Forty (40) seats in Diploma/ Under Graduate Degree Courses in Architecture/ Planning Programme, excluding supernumerary seats, if any;
- d. A batch of a maximum of Thirty (30) seats in Diploma/ Under Graduate Degree Courses in Applied Arts and Crafts Programme, excluding supernumerary seats, if any;
- e. A batch of a maximum of Thirty (30) seats in Diploma/ Under Graduate Degree Courses in Design Programme, excluding supernumerary seats, if any;
- f. A batch of a maximum of Thirty (30) seats in Post Graduate Courses in Engineering and Technology/ Planning/ Applied Arts and Crafts/ Hotel Management and Catering Technology Programme, excluding supernumerary seats, if any;
- g. A batch of a maximum of Twenty (20) seats in Post Graduate Courses in Architecture Programme, excluding supernumerary seats, if any;
- h. A batch of a maximum of Fifteen (15) seats in Post Graduate Courses in Design Programme, excluding supernumerary seats, if any;
- i. A batch of a maximum of Fifteen (15) seats in Post Graduate Courses in Pharmacy, Thirty (30) seats in Pharm.D., Ten (10) seats in Pharm.D. (Post Baccalaureate) in Pharmacy Programme, excluding supernumerary seats, if any;
- j. A batch of a maximum of Sixty (60) seats in Integrated Degree Courses in Engineering and Technology/ Hotel Management and Catering Technology/ MCA Programme and Integrated/ Dual Degree Course in MBA Programme, excluding supernumerary seats, if any;
- k. A batch of a maximum of Forty (40) seats in Integrated Degree Course in Planning Programme, excluding supernumerary seats, if any; and
- l. A maximum of Twenty (20) seats per year in Fellow in Management Programme.

2.23

"EoA" means Extension of Approval granted by AICTE for the conduct of Technical Programme(s)/ Course(s) to an Institution for that Academic Year.

"Extended EoA" means Extension of Approval granted by AICTE for the conduct of Technical Programme(s)/ Course(s) to an Institution for more than one Academic Year.

2.24

"Executive Committee" means the Committee constituted by the Council under Section 12 of AICTE Act, 1987.

2.25

"Expert Visit Committee (EVC)" means the Committee constituted by the Regional Officer as per the composition specified in the Approval Process Handbook to verify physically the availability of Infrastructural facilities of an Institution.

2.26

"Faculty member" means an individual qualified as per AICTE Regulations, working on Full Time basis in an Institution/

University.

2.27

"First Shift timing" means educational activities of the Technical Institution are conducted from 8 am to 3 pm.

2.28

"Foreign National" means the Citizen of the Countries other than India who are not of Indian origin as defined under OCI/ PIO.

2.29

"Government aided Institution" means Technical Institution that meets 50% or more of its recurring expenditure out of the grant received from the Government or Government Organizations.

2.30

"Government Institution" means Technical Institution established and/ or fully maintained by the Government.

2.31

"Head of the Institution" means the Vice-Chancellor in case of a University or an Institution Deemed to be University, the Principal/ Director/ such other designation as the administrative Head of the Institution of the Technical Institution referred.

2.32

"Institution Deemed to be University" means an Institution for Higher Education so declared, on the recommendation of the Commission, by the Central Government under Section 3 of the University Grants Commission Act, 1956.

2.33

"Lateral Entry" means admission of students into the second year of Diploma/ Under Graduate Degree Courses as specified in the Approval Process Handbook.

2.34

"Level" means Diploma, Post Diploma Certificate, Under Graduate Degree, Post Graduate Diploma and Post Graduate Degree Programmes.

2.35

"Minority Institution" means an Educational Institution established and administered by a minority or minorities and recognized by Competent Authority as Minority Institution upto the duration specified.

2.36

"NBA" means the National Board of Accreditation, an autonomous body initially set up by AICTE, registered under Societies Registration Act, 1860.

2.37

"Open and Distance Learning (ODL)" mode means a mode of providing flexible learning opportunities by overcoming separation of teacher and learner using a variety of media, including print, electronic, MOOCs, online and occasional interactive face-to-face meetings arranged by an Institution through Learner Support Services to deliver teaching-learning experience, including practical or work experience.

2.38

"Part Time timing" means educational activities of the Technical Institution are conducted from 5.30 pm to 9.30 pm and are meant only for working professionals or professionals with at least two years of work experience. Duration of the Course shall be a minimum of one/ two Semester(s) in excess than the Courses conducted in Regular Shift timing.

2.39

"Private University" means a University duly established through a State/ Central Act by a sponsoring body viz., a Society registered under the Societies Registration Act 1860, or any other corresponding Law for the time being in force in a State or a Public Trust or a Company registered under Section 8 of the Companies Act, 2013.

2.40

"Programme" means the field of Technical Education, i.e. Engineering and Technology, Pharmacy, Architecture and Planning, Applied Arts, Crafts and Design, Hotel Management and Catering Technology, MCA, Management (PGCM/ PGDM/ MBA) and such other Programmes/ areas as notified by AICTE Act, 1987.

2.41

"Public Private Partnership (PPP)" means a Partnership based on a contract or concession agreement, between a Government or Statutory entity on the one side and a Private Sector enterprise on the other side.

2.42

"Regional Committee (RC)" means a Committee established for each region under Section 14 of AICTE Act, 1987.

2.43

"Regular Shift timing" means educational activities of the Technical Institution are conducted from 9 am to 5 pm.

2.44

"Restoration of Intake" means restoring back to the "Approved Intake" of the Institution that was existing prior to any penal action.

2.45

"Second Shift timing" means educational activities of the Technical Institution are conducted from 12 Noon to 7 pm.

2.46

"Self-Financing Institution" means an Institution started by a Trust/ Society/ Company and does not receive grant/ fund from Central/ State Government/ UT for meeting its recurring expenditure.

2.47

"Society" means a Society registered under Societies Registration Act, 1860.

2.48

"Standalone Institutions" means those Institutions which are not affiliated to any of the University/ Board, but are imparting education by means of conducting regular courses leading to Diploma, Post Diploma Certificate, Post Graduate Certificate and Post Graduate Diploma Levels in Management, Travel and Tourism, Innovation and Entrepreneurship, Computer Applications and Design.

2.49

"Standing Appellate Committee (SAC)" means a Committee constituted by the Chairman as per the composition specified in the Approval Process Handbook for considering the appeals of the Technical Institutions.

2.50

"Standing Complaint Scrutiny Committee (SCSC)" means a Committee constituted by the Chairman as per the composition specified in the Approval Process Handbook for the Scrutiny of Complaints received against the Technical Institutions.

2.51

"Standing Hearing Committee (SHC)" means a Committee constituted by the Chairman as per the composition specified in the Approval Process Handbook to review the Reports of the Expert Visit Committee/ replies received for Show Cause Notices.

2.52

"State Level Fee Committee" means a Committee notified by the concerned State Government/ UT for Regulation of fee to be charged by the Technical Institutions.

2.53

"Supernumerary seats" includes TFW, OCI/ PIO/ Foreign Nationals/ Children of Indian Workers in the Gulf Countries, Lateral Entry, PwD and J&K PMSSS seats notified from time to time, over and above the "Approved Intake".

2.54

"Technical Institution" means an Institution set up by the Government, Government aided and Self-Financing/ Trust/ Society/ Company for conducting Course(s)/ Programme(s) in the field of Technical Education, Training and Research in Engineering and Technology, Pharmacy, Architecture and Planning, Applied Arts, Crafts and Design, Hotel Management and Catering Technology, MCA, Management, and such other Programmes and areas as notified by AICTE Act, 1987.

2.55

"Total Approved Intake" includes Intake approved in all the Programme(s)/ Course(s) of an Institution.

2.56

"Trust" means a Trust registered under the Indian Trust Act, 1882 as amended from time to time or any other relevant Acts.

2.57

"University" means a University defined under Clause (f) of Section 2 of the University Grants Commission Act, 1956.

2.58

"University Department" means a Department established and maintained by the University.

2.59

Any other word and expression used herein and not defined but defined in the All India Council for Technical Education Act, 1987 (

52 of 1987

), shall have the same meaning respectively assigned to them in the said Act.

3.

Relevance of Grant of Approval.

- 3.1 After commencement of these Regulations

a. New Technical Institutions either by Government/ Government aided or Self-financing Institutions shall be started ONLY after obtaining approval of the Council.

b. Existing Government/ Government aided/ Self-financing Institutions/ Institutions Deemed to be Universities (except Category I/ II) shall either conduct/ increase/ reduce the intake in the existing Course(s)/ Programmes or introduce new Programme(s)/ Course(s) at any Level in Regular mode ONLY after obtaining approval of the Council.

c. In no eventuality, a Technical Institution without prior approval of AICTE and Affiliating University/ Board concerned, shall be allowed to participate in the counselling and admission process to admit students.

d. Affiliating University/ Board shall not enroll students admitted in such Technical Institutions, which do not have requisite prior approval of the Council.

e. Central/ State Government/ UT concerned shall not admit students to any Programme of a Technical Institution, which do not have requisite prior approval of the Council.

f. Institutions Deemed to be Universities offering Technical Course(s)/ Programme(s) shall not admit students without prior approval of the Council.

g. Existing Standalone Institutions/ Institutions Deemed to be Universities shall either conduct/ increase/ reduce the intake in the Open and Distance Learning Courses or introduce Courses at any Level ONLY after obtaining approval of the Council.

3.2

a. In view of the large number of vacant seats in various Programmes during the last few years and the likely future demand, the Council shall not grant approval to the New Technical Institutions at the Diploma/ Under Graduate/ Post Graduate Level in Engineering and Technology in line with the recommendations of the Committee set up by AICTE to provide the National Perspective Plan for Technical Programmes. However, establishment of New Technical Institutions in Engineering and Technology shall be permitted only in cases as specified in the Approval Process Handbook from time to time.

b. Under Graduate Degree Courses with Minor Degree / Hons. in Emerging Areas shall be allowed as specified in the Approval Process Handbook from time to time..

c. Establishment of New Pharmacy Institutions for offering Diploma/ Degree Courses in Pharmacy shall not be permitted for a period of Two years beginning from the Academic Year 2020-21. However, establishment of New Technical Institutions in Pharmacy shall be permitted only in cases as specified in the Approval Process Handbook from time to time.

4.

Generic Conditions for Approval.

- 4.1 a. The Applicants shall not name the Technical Institution in such a way that the abbreviated form of the name of the Technical Institution becomes IIM/ IIT/ IISc/ NIT/ AICTE/ UGC/ MHRD/ GoI. The Applicant shall also not use the word(s) Government/ India/ Indian/ National/ All India/ All India Council/ Commission, anywhere in the name of the Technical Institution and other names as prohibited under the Emblems and Names (Prevention of Improper Use), Act, 1950. Provided that the restrictions mentioned above shall not be applicable, if the Technical Institution is established by Government of India or its name is approved by the Government of India.

b. The Institutions which were already given approval with those words shall be instructed to change/ drop the word from the Name of the Institution, as the Stake holders may misinterpret them to be Government/ Government Aided Institutions. If any Institution (other than Government/ Government Aided) continue to use 'Indian', 'National', etc. in the Name of the Institution, the Council shall remove such words while issuing EoA.

c. Applicants/ Institutions shall not use the names of the Existing Institutions within the State.

4.2

MHRD directives such as Scheme of "Sub-Mission on Polytechnics", to establish a Technical Institution in "Educationally

Backward Districts/ Left Wing Extremism (LWE) affected" Districts, digital payment for all financial transactions, National Academic Depository (NAD), Study in India and any other scheme(s) shall be complied with, as specified in the Approval Process Handbook.

4.3

AICTE does not recognize the Programme(s)/ Course(s) in Technical Education offered through distance mode except Management, MCA and Diploma/ Degree in Travel and Tourism Programmes, with the explicit approval of AICTE.

4.4

To maintain the quality of Education, 60% of the eligible Courses in any Technical Institution shall be accredited in the next 3 years time, else EoA shall not be issued by the Council.

4.5

For Institutions having Courses with meager admission consistently, appropriate action as specified in the Approval Process Handbook shall be initiated with the approval of the Council.

4.6

Supernumerary seats

a. Fifteen percent (15%) supernumerary seats over and above the "Approved Intake" per Course shall be approved in AICTE approved Institutions and University Departments, for admitting students from Foreign Nationals/ Overseas Citizen of India (OCI)/ Persons of Indian Origin (PIO)/ Children of Indian Workers in the Gulf Countries. One third (1/3rd) of these 15% seats shall be reserved for the Children of Indian Workers in the Gulf Countries.

Any vacant seat in a given Course, out of 1/3rd seats reserved for Children of Indian Workers in the Gulf Countries shall be reverted to the seats of 2/3rd meant for OCI/ PIO/ Foreign Nationals and vice-versa. Further, any vacant seat in the "Foreign Nationals/ Overseas Citizen of India (OCI)/ Persons of Indian Origin (PIO)/ Children of Indian Workers in Gulf Countries" after the last round of the admission of the concerned State Government/ UT may be filled with NRI seats, subject to the approval from AICTE for the NRI seats and fulfilment of requisite norms as specified in the Approval Process Handbook.

Beside this, any vacant seat in the "Approved Intake" after the last round of the admission of the concerned State Government/ UT, may be filled with NRI/ Foreign Nationals/ Overseas Citizen of India (OCI)/ Persons of Indian Origin (PIO)/ Children of Indian Workers in the Gulf Countries, subject to the approval from AICTE for the above seats and fulfilment of requisite norms as specified in the Approval Process Handbook.

b. The Council shall permit the Introduction/ Continuation of NRI/ OCI/ PIO/ FN/ Children of Indian Workers in the Gulf Countries seats ONLY in the timing of Regular/ First Shift.

c. Mandatory provision of supernumerary seats under Tuition Fee Waiver Scheme in all the Courses and Programmes shall be applicable to all Technical Institutions as specified in the Approval Process Handbook.

4.7

Admission under Lateral Entry in Diploma/ Under Graduate Degree Course(s).

a. Lateral Entry to Second Year Diploma Course(s) shall be permissible up to a maximum of 10% of the "Approved Intake" which shall be over and above, supernumerary to the "Approved Intake", plus the unfilled vacancies of the First year as specified in the Approval Process Handbook.

b. Lateral Entry to Second Year Under Graduate Degree Course(s) in Engineering and Technology/ Pharmacy Programme shall be permissible up to a maximum of 10% of the "Approved Intake" which shall be over and above, supernumerary to the "Approved Intake", plus the unfilled vacancies of the First year as specified in the Approval Process Handbook.

c. Any Foreign National who has obtained Diploma in a Foreign Institution (having an equivalency Certificate issued by the Association of Indian Universities) or Diploma in an Indian Institution shall also be eligible for Lateral Entry into the Second Year Under Graduate Degree Course(s). The Institutions having approval for the supernumerary seats in such Course(s) are ONLY eligible to admit the Foreign Nationals as per the norms, else the Institution shall apply for the same on AICTE Web-Portal. However, the total Foreign Nationals admitted under supernumerary seats and the Lateral Entry shall not exceed the 15% of the "Approved Intake" in an Academic year.

d. NRI candidates shall also be permitted for admission in Lateral Entry to Second Year, subject to the approval from AICTE for the NRI seats and fulfilment of requisite norms as specified in the Approval Process Handbook.

e. Vacant seats arising out of the students withdrawing the admission in the First Year shall also be considered for Lateral Entry.

f. The Council shall not permit the Introduction or Continuation of Lateral Entry Separate Division in Second Year Engineering and Technology/ MCA Courses.

4.8

The State Government/ UT/ Directorate of Technical Education/ Directorate of Medical Education shall ensure that 10% of reservation for Economically Weaker Section (EWS) as per the reservation policy for admission, operational from the Academic year 2019-20 without affecting the reservation percentages of SC/ ST/ OBC/ General. However, this would not be applicable in the case of Minority Institutions referred to the Clause (1) of Article 30 of Constitution of India.

Such Institution shall be permitted to increase the annual permitted strength over a maximum period of two years beginning with the Academic Year 2019-20.

EWS vacant seats shall be considered for the Lateral Entry to Second Year Course(s) with the same reservation policy for admission.

4.9

Requirements for the new/ existing Institutions/ Institutions Deemed to be Universities conducting Technical Programmes

a. ALL the Technical Institutions shall fulfil the requisite norms as specified in the Approval Process Handbook.

b. Documents showing ownership of Land/ Building as per the provisions of Section 8 of the Transfer of Property Act, 1882 or any other Law for the time being in force relating to transfer of property to or by Companies, Associations or bodies of individuals, in the name of the Applicant in the form of Registered Settlement Deed/ Registered Sale Deed/ Irrevocable Gift Deed (Registered)/ Irrevocable Government/ Private Lease Deed (Registered) (for a period of minimum 30 years with at least 25 years of live Lease at the time of submission of application). However, Private Lease of Building is permissible ONLY for Mega/ Metro Cities due to the scarcity of Land.

Further to that, it shall be open for the Promoter Trust/ Society/ Company of the proposed Institution to mortgage the Land after the receipt of Letter of Approval, only for raising the resources for the purpose of development of the Technical Education Institution situated on that Land. It shall be open for the Promoter Trust/ Society/ Company of the existing Institution to run other Educational Courses/ Institutions in the surplus Land arising out of the prevailing/ reduced norms of Land requirement. However, such surplus Land shall be used as per the Land Use Certificate given to the Trust/ Society/ Company by the concerned authority, subject to such Courses/ Institutions having their own facilities to conduct such Programmes without sharing the essential infrastructure facilities such as Class Room, Laboratory etc. with the already approved Technical Institution. However, common amenities such as Administrative infrastructure, Canteen, Auditorium, Playground, Parking, etc. may be shared, provided it caters to all the students of all the Programmes.

c. The Promoter Trust/ Society/ Company of a new Technical Institution shall have to construct the required Built-up area for setting up of Institution, as specified in the Approval Process Handbook.

d. NOC from Affiliating University/ Board/ State Government/ UT shall be required, as applicable, for such applications as specified in the Approval Process Handbook.

4.10

The Institutions shall not directly or indirectly, demand or charge or accept, capitation fee or demand any donation, by way of consideration for admission to any seat in any Course.

4.11

Course(s) conducted in the timing of Part time are permitted with the rationale that the existing facilities of the same Course(s) offering in the timing of Regular/ First Shift shall be utilized. Therefore, Course(s) shall not be conducted in the timing of Part Time, if the Institution is not offering the same Course(s) in the timing of Regular/ First Shift or other Level (Diploma/ Under Graduate Degree) of the same Programme.

4.12

The Council shall not permit the Post Graduate Course(s) (except MCA and Management), if the Institution is not offering an Under Graduate (Core) Course in the same Programme. However, the same is permitted to State/ Central Universities or Autonomous Government Institutions offering Only Post Graduate Courses in Engineering and Technology.

4.13

The Council shall not permit the conduct of PGDM and MBA Courses in the same Institution.

4.14

In general, the teaching learning process shall take place either in the form of "face to face" mode in a class room (Regular Course) or "Open and Distance Learning" mode by providing flexible learning using a print, electronic, MOOCs, online and occasional interactive face-to-face meetings.

The Courses offered in the timings of Regular Shift, First Shift, Second Shift and Part Time shall be considered as Regular Courses. The Institutions shall have to fulfil all facilities such as Infrastructure, Faculty and other requirements to offer the Regular Courses as per the norms specified in the Approval Process Handbook for the Total Approved Intake and the Institutions may conduct the Courses in the timings of Regular Shift, First Shift, Second Shift and Part Time not exceeding the "Approved Intake" of each Course, as per the convenience of all stakeholders. All such Institutions shall create the necessary Faculty, Infrastructure and other facilities within 2 Years to fulfil the norms. Student enrolment details shall be uploaded in the Web-Portal.

The Institutions shall run Skill Development Courses, Student Developmental Activities such as Research Park, Start-up Centre, Innovation Club, Entrepreneurship, etc. in the excess Built-up area.

4.15

The AICTE approved Institutions shall be permitted to collaborate with each other for Student Exchange Programme so that the students admitted in an Institution may spend one Semester in another Institution.

4.16

An Institution can only allow up to 20% of the total Courses being offered in a particular Programme in a Semester through the Online Learning Courses provided through SWAYAM platform as per the AICTE (Credit Framework for online learning course through SWAYAM) Regulations, 2016.

5.

Submission of the application.

- 5.1 Application for grant of approval under these Regulations shall be made by any of the following:

- a. The Chairman/ Secretary in case of the Trust/ Society/ Company;
- b. An Officer authorized by the concerned Central/ State Government/ UT in case of Central or State Government/ UT Administration or a Society/ Trust registered with them; and
- c. An Officer authorized by the Trust/ Society/ Company/ Central/ State Government/ UT under Public Private Partnership or Build Operate Transfer (BOT) mode made by them, as the case may be.
- d. Principal/ Director of the Technical Institution or Head of the Institution or an Officer of the Institution duly authorized by the Promoter of such Institution or Chairman/ Secretary in case of the Trust/ Society/ Company or Vice Chancellor/ Registrar of Institution Deemed to be University.

5.2

A Company having any foreign equity directly or indirectly as shareholding shall not be permitted to apply for setting up a Technical Institution.

5.3

Central, State and Private Universities may apply for approval by providing Infrastructure and other requirements as specified in the Approval Process Handbook.

5.4

a. Institutions Deemed to be Universities shall seek prior approval of the Council under Clause 1.2 of these Regulations. The requirements, eligibility and procedure shall be as specified in the Approval Process Handbook.

Further to that, the Institution Deemed to be Universities shall also have to fulfil the norms as per UGC Regulations.

b. Universities seeking approval for the first time from AICTE shall submit an application as a new Technical Institution for all their existing Technical Programme(s) and Course(s). Institution Deemed to be University having multiple Campuses/ Off Campuses/ Constituent Colleges shall apply separately for approval.

5.5

The Council shall publish, from time to time, Approval Process Handbook detailing the documents to be attached to the application, the Technical Education Regulatory (TER) Charges to be remitted, the norms and standards, requirements and the procedure by which the applications are processed for grant of approval of the new/ existing Institutions.

5.6

a. The Applicant for setting up a New Technical Institution shall obtain a unique USER ID following the procedure specified in the Approval Process Handbook.

The Applicants/ existing Institutions shall be required to submit online application for the cases listed in Clauses 1.2 of

these Regulations using their unique USER ID allotted to them by remitting the prescribed Technical Education Regulatory (TER) Charges as specified in the Approval Process Handbook through AICTE's payment gateway on the Web-Portal, failing which the application shall not be considered.

b. Only those applications submitted within the cut-off date, including payment shall be considered for processing.

c. The Web-Portal permits the generation of Deficiency Report for the applications.

d. The Applicants shall edit the data till the final submission of the application on the Web- Portal.

After pressing the "submit" tab, the data shall not be allowed for any further editing till the processing of the application is completed.

e. If an Applicant/ Institution has wrongly submitted an application, the same shall be processed as per the procedure specified in the Approval Process Handbook.

f. After the submission of the application, if an Applicant intends to revoke the application for a specific purpose (other than Extension of Approval) or withdraw the application for Closure of the Institution/ Programme(s)/ Course(s), the same shall be processed as per the procedure specified in the Approval Process Handbook.

g. Applicants have to upload documents in the Web-Portal/ submit to the Scrutiny/ Re- Scrutiny Committee/ Expert Visit Committee, as applicable, as specified in the Approval Process Handbook.

h. An Affidavit shall be submitted/ uploaded by the Applicants in the Format as specified in the Approval Process Handbook, on a Non-Judicial Stamp Paper of Rs.100/- duly sworn before a First Class Magistrate or Notary or an Oath Commissioner, inter alia, stating that the information given in the application is true and that if it is found at any time that any part of the information has been suppressed and/or misrepresented and/or the information given in the application is false, the Council shall be free to take action including Withdrawal of Approval/ not considering for grant of approval and/ or any other legal action as it may deem fit.

i. In case of rejection of an application, the applicable TER Charges shall be refunded as specified in the Approval Process Handbook.

j. The applications eligible to submit "Year round" along with the applicable TER Charges as specified in the Approval Process Handbook shall make payment through online mode.

The applications submitted after the cutoff date mentioned in the Public Notice shall not be processed during the current Academic Year, but shall be processed for the successive Academic Year only.

6.

Processing of the applications and Grant of Approval.

- 6.1 The applications received shall be processed as per the norms and procedures specified in the Approval Process Handbook as notified by the Council from time to time, in addition to the existing Central, State and Local Laws.

6.2

For setting up a new Technical Institution

a. The State Government/ UT and the Affiliating University/ Board shall forward their views on the applications received under Clause 1.2. a of these Regulations to the concerned Regional Office, not later than one week from the last date of submission of application as notified.

In the absence of the receipt of views from the State Government/ UT/ Affiliating University/ Board on the application, the Council shall proceed for further processing.

b. The applications received under Clause 1.2. a of these Regulations, shall be processed by a Scrutiny Committee/ Re-Scrutiny Committee duly formed by the Regional Officer as per the composition as specified in the Approval Process Hand Book, for issue of Letter of Intent (LoI) and the Applicant shall present all the original documents along with self attested copies to the Committee. Applicants are advised to adhere to Scrutiny schedule and not to remain absent.

The Applicant, if interested to start the Institution in the current Academic Year itself, shall submit a Resolution to that effect to Scrutiny/Re-Scrutiny Committee.

c. The recommendations of the Scrutiny/ Re-Scrutiny Committee shall be placed before the Regional Committee for its recommendation and further placed before the Executive Committee for approval or otherwise.

d. In case of new Technical Institutions, the Council if deems fit shall grant approval to issue the Letter of Intent (LoI) for the given Academic Year, the same shall be valid for two Academic Years.

Within the validity period, after the establishment of Infrastructure facilities as per the requirements, the Applicant shall apply on AICTE Web-Portal for the Letter of Approval anytime in the year. In case of the Applicant expressing interest in getting Letter of Approval (LoA) in the current Academic Year itself, the same shall be processed further by an Expert

Visit Committee.

Expert Visit Committee formed by the Regional Officer as per the composition as specified in the Approval Process Hand Book shall verify physically the availability of infrastructural facilities of the Institution. On expiry of the validity, the Letter of Intent (LoI) issued stands cancelled and the Applicant shall make a fresh application for the issuance of Letter of Intent (LoI).

e. The recommendations of the Expert Visit Committee shall be placed before the Regional Committee for its recommendation and further placed before the Executive Committee for approval or otherwise.

f. Regional Officer concerned while forwarding the recommendations of the Regional Committee to Approval Bureau of AICTE, for placing before the Executive Committee, shall verify that the processes and parameters prescribed under these Regulations and Approval Process Handbook are followed by the Scrutiny/ Re-Scrutiny Committee and Expert Visit Committee (as applicable) and the Regional Committee.

The Approval Bureau of AICTE shall also verify that the processes and parameters prescribed under these Regulations and Approval Process Handbook are followed by the Scrutiny/ Re-Scrutiny Committee and Expert Visit Committee (as applicable) and the Regional Committee.

g. The decision of the Executive Committee shall be uploaded on the Web-Portal in the form of a Letter of Intent (LoI)/ Letter of Approval (LoA) or Letter of Rejection (LoR) with the specific reasons for rejection of the application.

h. Applicants for starting new Technical Institutions other than Government/ Government aided Institutions whose applications are recommended for Letter of Approval (LoA) by the Executive Committee shall be informed for the creation of Security Deposit.

The existing Institutions approved by the other Regulatory Bodies, applying for the first time to the Council for approval and are in existence for more than 10 years are exempted from the payment of Security Deposit.

The Applicant shall submit the payment proof of the Security Deposit along with an Affidavit within 15 days from the date of intimation to the concerned Regional Office, else a penalty of 10% and 50% of the value of the Security Deposit shall be imposed upto 31st May and 31st July of the Calendar Year respectively, beyond which the approval shall be withdrawn.

i. The online Security Deposit amount created by the Technical Institution with AICTE shall be permitted to be withdrawn after a term of 10 years or in case of the Closure of the Programme/ Institution, subject to the submission of relevant documents. The interest accrued on the Security Deposit shall be credited to the Council and shall be utilized by AICTE for Institutional Development activities, Quality Improvement Programme for Faculty and giving scholarships to students, etc. However, the term of the Security Deposit could be extended for a further period as may be decided on case to case basis and/or forfeited in case of any violation of norms, conditions and requirements and/or Nonperformance by the Institution and/or complaints against the Institution.

j. Validity of the Letter of Approval for the new Technical Institutions, if issued, shall be for two Academic Years from the date of issue of Letter of Approval, only for obtaining affiliation from the respective University/ Board and fulfilling State Government/ UT requirements for admission in the current Academic Year.

ALL the Applicants issued LoA for starting the new Technical Institutions shall apply on AICTE Web-Portal for Extension of Approval as specified in the Approval Process Handbook from the next Academic Year onwards, irrespective of the admission of the students or otherwise.

On expiry of the validity of two Academic Years, the LoA issued stands cancelled, if no students were admitted in the Institution and the Applicant shall make a fresh application for the issuance of Letter of Intent.

k. New Technical Institutions granted Letter of Approval and existing Institutions granted approval for introduction of new Course(s), Division(s), Programme(s), variation in intake capacity shall comply with appointment of Faculty and Principal/ Director as the case may be, as per the policy of the Council.

Institutions other than Minority Institutions shall appoint Faculty/ Principal/ Director and other technical supporting staff and administrative staff strictly in accordance with the methods and procedures of the concerned Affiliating University/ Board/ State Government/ UT particularly in case of selection procedures and selection Committees.

The information about these appointments of staff in the prescribed format shall be uploaded on the Web-Portal of AICTE.

l. An Expert Visit Committee may be conducted any time before the first batch of students have passed out, to verify the fulfilment of the norms as specified in the Approval Process Handbook.

m. Applicants issued Letter of Intent (LoI) but rejected after the Expert Visit Committee shall inform the Council about

their readiness of infrastructure after making the relevant payment through online as an additional TER Charges for the conduct of Expert Visit Committee, the same shall be processed for the next Academic Year. However, one Expert Visit Committee per year only shall be permissible within the validity period of Letter of Intent (LoI).

6.3

For the existing Institutions

a. For applications submitted under Clause 1.2, the Council shall grant the desired approval, only after confirming that the Applicant had fulfilled all the norms and standards through the procedure as specified in the Approval Process Handbook. The Council reserves the right to inspect and if any of the information submitted is found to be false, shall initiate penal action as specified in the Approval Process Handbook.

b. In case of the existing Institutions, if an EVC was conducted or Show Cause notice was issued, the same shall be placed before the Standing Hearing Committee (SHC) as applicable and processed as per the procedure specified in the Approval Process Handbook.

If the Institution is aggrieved by the decision of the Executive Committee, the Institution shall have the right to appeal once to the Council, as per the procedure specified in the Approval Process Handbook.

c. If the application for the Conversion of Women's Institution into Co-ed Institution and vice-versa/ Conversion of Diploma Level into Degree Level and vice-versa/ To start new Programme/ Level is not approved, EoA of the Institution shall be issued, however, the deficiencies noted by the Scrutiny/ Re-Scrutiny/ Expert Visit Committee shall be fulfilled before the issue of EoA for the next Academic Year.

d. The application for the Closure of Institution shall be valid for the duration of the respective Programme offered by the Institution within which the Institution should submit the required mandatory documents. Else, AICTE may close the Institution with the intimation to the Affiliating University/ Board and the State Government/ Union Territory and shall issue a Public Notice regarding the same.

The application for the Closure of the Programme(s)/ Course(s) shall be valid for the duration of the respective Course offered by the Institution within which the Institution should submit the required mandatory documents. Else, AICTE shall initiate appropriate action to close the Programme(s)/ Course(s).

e. Change in name of the Trust/ Society/ Company including merger of two or more Trusts/ Societies/ Companies having the same common objects of education etc. shall be permitted as per the respective Laws laid down in the Acts. A Trust/ Society may create a new Company to hold their assets, and once the transfer of assets is complete, the Trust/ Society may be dissolved and the ownership may be transferred to the Company. Such viability shall vary depending on the jurisdiction and context.

f. Institutions shall be eligible for new Course(s)/ expansion of existing Course(s), equal to the number of valid NBA accredited Course(s), limited to a maximum of FOUR within the definition of Division/ Programme/ Level.

Increase in Intake/ Additional Course in Under Graduate Degree/ Post Graduate Degree Level in Engineering and Technology shall be permissible only in EMERGING AREAS.

g. Institutions having an "Approved Intake" less than a Division size in any of the Course(s) as prescribed by the Council may apply for intake of full Division size themselves and shall maintain Faculty: Student ratio accordingly, without NBA accreditation/ NOC from Affiliating University/ Board/ State Government/ UT, subject to "Zero Deficiency" based on Self-Disclosure on AICTE Web-Portal. However, this is not applicable in case of Institutions under penal action.

h. Institutions may apply for reduction in Intake in any of the Course(s) within a Division by themselves in AICTE Web-Portal and maintain Faculty: Student ratio accordingly without NOC from affiliating University/ Board/ State Government/ UT and the reinstatement shall be permitted within a Division without NBA. Institutions may apply for reinstatement for the same by themselves in AICTE Web-Portal.

i. The existing Institutions having total "Approved Intake" equal to/ less than the "Maximum Intake Allowed"/ Institutions not eligible to apply for NBA accreditation, shall be permitted to increase (without NBA accreditation) in the same Level in the same Programme (Diploma/ Under Graduate/ MCA/ Management) upto the "Maximum Intake Allowed" in each Programme as that of a new Technical Institution, as per the Approval Process Handbook, subject to "Zero Deficiency" based on Self-Disclosure on AICTE Web- Portal.

j. The existing Institutions having total "Approved Intake" exceeding the "Maximum Intake Allowed" seeking for approval for Increase in Intake/ Additional Course(s) (without NBA accreditation) in the same Level in the same Programme (Diploma/ Under Graduate/ MCA/ Management) shall have to apply for the Closure of Course(s) as per the Procedure and shall apply for increase in Intake/ Additional Course(s) in lieu of the same, without exceeding the total "Approved

Intake" as well as the number of Courses/ Divisions as specified in the Approval Process Handbook, subject to "Zero Deficiency" based on Self- Disclosure on AICTE Web-Portal.

Increase in Intake/ Additional Course in Under Graduate Degree in Engineering and Technology shall be permissible only in EMERGING AREAS.

k. The Institutions applying for new Course(s) at the Post Graduate Level for the Programmes not falling under the purview of NBA, shall be eligible for the same only after two batches of students pass out. Such Institutions shall be permitted for new Course(s) to a maximum of FIVE Courses/ Divisions, subject to "Zero Deficiency" based on Self-Disclosure on AICTE Web-Portal. However, for every Post Graduate Course, there should be at least one Professor with Ph.D. qualification.

As and when such Programmes are considered by the NBA for accreditation, the Institutions who have been approved by the AICTE to run such Course(s) at the Post Graduate Level shall obtain NBA accreditation within two years.

l. The existing Institutions offering Degree Pharmacy Programme shall only be permitted to introduce Pharm.D. Course based on a valid NBA accredited Course, subject to "Zero Deficiency" based on Self-Disclosure on AICTE Web-Portal. However, the Institutions already offering Pharm.D. with the approval of PCI (prior to 2018) shall be processed without NBA accreditation.

m. Well performing Institutions providing quality Technical Education through accreditation of Courses by NBA/ UGC approved academic autonomy/ AICTE approved Graded Autonomy to Standalone Institutions, shall be duly recognized by AICTE and considered for grant of approvals for Extended EoA as specified in the Approval Process Handbook. Institutions approved for extended EoA are waived from paying TER Charges for Extension of Approval (EoA) ONLY for the extended years. However, such Institutions are required to submit the application for EoA and duly fill all the data and maintain ALL the norms and standards as specified in the Approval Process Handbook.

n. The Institution shall be given an opportunity to comply the deficiencies, if any, before the Scrutiny/ Re-Scrutiny Committee, to fulfil the criteria of "Zero Deficiency" based on Self- Disclosure, for processing the application, as applicable.

o. Applicants, whose applications are recommended for a new Programme shall create the Security Deposit as specified in the Approval Process Handbook. The Applicant shall submit the payment proof of the Security Deposit along with an Affidavit within 15 days from the date of intimation to the concerned Regional Office, else a penalty of 10% and 50% of the value of the Security Deposit shall be imposed upto 30th May and 31st July of the Calendar Year respectively, beyond which the approval shall be withdrawn.

6.4

The uploading of the Scrutiny/ Re-Scrutiny/ Expert Visit Committee Report shall be done by the concerned Regional Office.

6.5

If any member of the Scrutiny/ Re-Scrutiny/ Expert Visit Committee is unable to attend or refuses or incapacitated to take part in the Committee, then Regional Officer with prior or post-facto approval of the Member Secretary, AICTE shall opt to choose another expert from the approved panel of the experts manually.

6.6

Institution Deemed to be University

a. The Council shall approve the Technical Programme(s)/ Course(s) offered by the Institutions Deemed to be Universities falling under Category I/ II as notified by UGC. Such Institutions Deemed to be Universities shall have to adhere to the norms and standards as specified by AICTE from time to time and an Affidavit to this effect shall be submitted to AICTE and UGC.

The application submitted by an Institution Deemed to be University falling under Category III as notified by UGC shall be processed as per the procedure mentioned in Clause 6.2/ 6.3 (as applicable) of these Regulations.

b. Universities shall also submit applications for other Categories in Clause 1.2 of these Regulations. The requirements, eligibility and procedure shall be as per the concerned Clauses of the Approval Process Handbook. However, Expert Visit Committee for the Introduction of supernumerary seats for OCI/ PIO/ Foreign Nationals/ Children of Indian Workers in the Gulf Countries for Category I/ II Universities shall be exempted.

c. State University/ Central University/ Institution Deemed to be University (Government) are not required to pay the Security Deposit.

Institution Deemed to be University (Private)/ Private Universities which were in existence for more than 10 years with

UGC are exempted from the payment of Security Deposit.

Universities which were granted approval from AICTE earlier as a Technical Institution and created Security Deposit and got released after the maturity period are not required to pay the Security Deposit, else the University shall pay the Security Deposit for the remaining period of 10 years, as applicable.

d. Institutions Deemed to be Universities offering Technical Programme(s) approved by the Council, falling under Category I/ II as declared by UGC shall have to submit an application to the Council indicating the increase in Intake in the Courses/ New Course(s) in emerging areas. The Council shall be granting approval to those Courses. However, such Universities shall have to update the data in AICTE Web-Portal on annual basis and comply the norms and standards as specified by AICTE from time to time. The University shall annually submit Affidavit to AICTE and UGC to this effect. If any complaints are received about the violation of the norms, AICTE shall inspect the University and inform the UGC to take appropriate action. In case of Institution Deemed to be University, the action as specified in the Approval Process Handbook shall be initiated and informed to the UGC.

e. Universities that have been recognized as an Institute of Eminence by the Ministry of HRD, Government of India shall be exempted from the annual approval process and accorded approvals for offering Technical Programmes/ Courses. However, such Universities shall have to update the data in AICTE Web-Portal on annual basis and comply the norms and standards as specified by AICTE from time to time. The University shall annually submit Affidavit to AICTE and UGC to this effect. If any complaints are received about the violation of the norms, AICTE shall inspect the University and inform the MHRD and UGC to take appropriate action. In case of Institution Deemed to be University, the action as specified in the Approval Process Handbook shall be initiated and informed to the MHRD and UGC.

6.7

Open and Distance Learning Courses. - The applications submitted by the Standalone Institutions/ Institutions Deemed to be Universities for conducting Courses in Open and Distance Learning mode shall be processed as per the norms and procedure specified in the Approval Process Handbook. Further, the Institutions shall submit the application to the Council every year for the Extension of Approval of the Courses/ Increase in Approved Intake in the Courses/ Introduction of new Courses/ Closure of Courses in Open and Distance Learning mode.

6.8

Vocational Education Courses. - The applications for the introduction of Vocational Education Courses shall be processed as per the procedure specified in the Approval Process Handbook and all other norms and standards as notified in NSQF Regulations and SAMVAY from time to time. Further, the Institutions shall submit the application to the Council every year for the Extension of Approval of the Courses/ Increase in Approved Intake in the Courses/ Introduction of new Courses/ Closure of Vocational Education Courses.

6.9

The applications submitted under Clause 1.2 of these Regulations shall be processed as per the procedure specified in the Approval Process Handbook. The consolidated list of all the Institutions with the "Approved Intake" shall be placed by the Approval Bureau before the Executive Committee/ Council for the grant of Extension of Approval as applicable for the Technical Institutions to continue to conduct Technical Programme(s) and Course(s). The decisions taken by the Executive Committee are ratified by the Council.

The same shall be notified on the Web-Portal. Further the Institution shall download the Extension of approval letter along with "Approved Intake" through the Institution login.

All Orders shall be uploaded by 30th April of the Calendar Year and the detailed speaking orders (in case of reduction in intake, No Admission, etc.) shall be uploaded in the Web- Portal not later than 15th May of the Calendar Year.

6.10

The Council shall not grant any conditional approval to any Institution.

6.11

AICTE shall also conduct inspections from time to time with or without notifying the dates, in such cases where specific complaints of falsification of documents, misrepresentation, violation of norms of standards, malpractices, etc. are received.

Institutions at random would be subjected to surprise inspection for the fulfilment of the norms of Approval Process Handbook and appropriate action including Withdrawal of Approval and any other action deemed necessary, shall be initiated against the Applicants, as the case may be.

6.12

For the Programmes/ Courses of the Institutions whose approval is withdrawn/ suspended by the Council, the concerned State Government/ UT shall redistribute the students to other nearby AICTE approved Technical Institutions affiliated to the University/ Board and the Council shall allow supernumerary seats in such Institutions to accommodate the redistributed students appropriately till they complete the Programmes/ Courses.

6.13

Directorate of Technical Education/ State Government/ UT/ Affiliating University/ Board shall download the intakes for various Courses for the Institutions under their jurisdiction, from Web-Portal through their login.

6.14

Student's eligibility for admission to all the Programmes/ Courses shall be as specified in the Approval Process Handbook and as per the reservation policy of the Central Government/ respective State Government/ UT, as the case may be.

Any Foreign National who had obtained School Leaving Certificate/ Diploma/ Degree in a Foreign Institution shall produce an Equivalency Certificate issued by the Association of Indian Universities for admission to an Institution/ University in India.

The commencement and end of Classes for the academic sessions for all the Courses/ Programmes/ Levels shall be followed as specified in the Approval Process Handbook.

6.15

Any Institution offering Technical Programme(s)/ Course(s) without approval of the Council shall be termed as unapproved Institution.

7.

Appeal before Standing Appellate Committee.

- 7.1 An Institution/ Applicant, if aggrieved by the decision of Executive Committee shall have the right to appeal once to the Council, within 7 days from the date of uploading of LoR. All the appeals submitted by the Applicants/ Institutions shall be placed before the Standing Appellate Committee. The final decision of the Council shall be uploaded on or before 30th April of the Calendar Year.

7.2

An Officer of the Council shall place the records before the Standing Appellate Committee. Two representatives of the Institution shall be invited to present their case along with the compliance and supporting documents before the Standing Appellate Committee.

7.3

The recommendations of Standing Appellate Committee shall be placed before the Council, whose decision shall be final.

7.4

The decision of the Council about the grant of approval or otherwise shall be communicated to the Applicant through Web-Portal on or before 30th April of Calendar Year, with the reasons for rejection of the application.

8.

Time Limit for the grant of LoA/ EoA.

- LoA/ EoA shall not be granted after 30th April of every Calendar Year in view of the order dated 13.12.2012 passed by the Hon'ble Supreme Court of India in CA no.9048/2012 titled as Parsvanath Charitable Trust and others Vs AICTE and Ors.

In case, the deficiencies are complied with subsequently during the Academic Year, the approval shall be granted under extraordinary circumstances, for the next Academic Year.

9.

Requirements to be fulfilled after the grant of Approval.

- 9.1 All Technical Institutions shall upload the information in respect of their Director/ Principal, Faculty members and students admitted in each Course in the format available on the Web-Portal of the Council and update the information from time to time. Scanned copies of PAN Card, Adhaar Card (if available) and Form 16 of all the faculty members shall also be uploaded on the Web-Portal.

9.2

The Institutions shall adopt the minimum standards and qualifications as specified in the Approval Process Handbook. However, Institutions Deemed to be Universities/ Institutions having Accreditation/ Autonomy status shall surpass the

minimum standard and qualifications specified.

9.3

The Applicants are expected to provide the Council true and complete information and documents required for various purposes. If the information given and/or the documents provided to the Council are found to be false, incomplete and/or the Applicants have failed to disclose factual information and/or suppressed/ misrepresented the information, the Council shall initiate action including Withdrawal of Approval/ any other action as deemed necessary against the Applicants.

If any document submitted is found to be fraudulent, criminal case shall be filed against the Principal of the Institution and the Chairman/ Secretary of the Trust/ Society/ Company.

9.4

In the event of denial of Extension of Approval for the existing Courses or grant of Extension of Approval as per the Clauses 6.11 and 9.3 of these Regulations, such Institutions shall not be considered for Extension of Approval till such proceedings are settled and the Promoters/ Institutions are cleared of the charges of violations.

10.

Release of Security Deposit.

- The Trust/ Society/ Company shall apply online and upload/ submit the relevant documents in AICTE Web-Portal for the release of the Security Deposit and the same shall be processed as per the procedure specified in the Approval Process Handbook.

11.

Action in case of violation of Regulations.

- 11.1 An Institution offering any Technical Programme in violation of these Regulations shall be liable for initiation of legal action including Withdrawal of Approval, if any, and/or legal criminal action by the Council against the Institution and/or its Promoter Trust/ Society/ Company and individuals associated, as the case may be.

11.2

If any Technical Institution contravenes any of the provisions of relevant Regulations, the Council after making appropriate inquiry through Standing Hearing Committee (SHC) and after providing an opportunity of being heard through the Standing Appellate Committee (SAC) shall withdraw the approval granted. In case of Withdrawal of Approval to the Institution, the Technical Institution/ Trust/ Society/ Company shall apply afresh for approval after completion of two Academic Years for setting up a New Technical Institution as per the procedure specified in the Approval Process Handbook.

11.3

In case of any litigation pertaining to the penal action initiated by the Council for an Institution, for the contravention of any of the relevant Regulations, such Institution shall have to apply as specified in the Approval Process Handbook, as applicable in the next Academic Year in AICTE Web-Portal, in the absence of any specific court order to the contrary.

11.4

Penal Action in case of Violation of the Regulations/ Approval Process Handbook

- a. Non-Submission/ Submission of incomplete application for Extension of Approval
- b. Non-Fulfilment of the requirement of qualified Principal/ Director
- c. Non-Fulfilment of Faculty: Student ratio, not adhering to the pay scales and/or qualifications prescribed for Faculty
- d. Non-Fulfilment in Computer, Software, Internet, Printers, Laboratory Equipment, Books, Journals and Library facilities requirements, etc.
- e. Non-Fulfilment of Essential requirements for Technical Institution
- f. Non-Fulfilment of Location/ Built-up Area/ Land as specified in the Approval Process Handbook at the time of year of establishment or the current Academic Year
- g. Excess admission
- h. Charging excess fee than the fee prescribed by the concerned State/ Fee Regulatory Committee
- i. Institutions not allowing Expert Visit Committee for physical verification of Infrastructural facilities/ Institutions not having Occupancy Certificate/ Completion Certificate/ Building License/ Form D/ Barrier free environment/ Institutions Deemed to be Universities not having NAD/ Institutions demanding for the Original Degree Certificates from the Faculty members at the time of joining the Institution
- j. Violation of norms of admission by the Institutions/ Universities conducting PGDM/ PGCM Courses/ PGDM Institutions

not having NAD or Institutions offering PGDM Course(s) in Regular or ODL mode not uploading student enrollment data and list of students completed the Course(s) successfully along with their CGPA/ % of marks in the AICTE Web-Portal

k. The Institutions violating the Regulations/ Approval Process Handbook as above shall be liable to any one or more of the following punitive actions as specified in the Approval Process Handbook, by the Council:

- i. Suspension of approval for NRI and supernumerary seats for one Academic Year
- ii. Five times the total fees collected per student shall be levied against each excess admission
- iii. Reduction in "Approved Intake"
- iv. No admission in one/ more Course(s) for one Academic Year
- v. Not eligible to receive any grant from AICTE
- vi. Withdrawal of approval for Programme(s)/ Course(s)
- vii. Withdrawal of approval of the Institution
- viii. Withdrawal of graded autonomy granted by the Council

The Council may initiate penal action for not regularizing and ensuring the timely and full payment of the salary of the Staff through Electronic Clearing Service (ECS) by nationalized banks.

11.5

Institutions not following the guidelines issued by the Council regarding refund of fee for cancellation of admission or delaying refunds/ violating the norms in case of Collaboration and Twinning Programmes shall be liable to punitive actions as specified in the Approval Process Handbook by the Council.

11.6

AICTE shall initiate appropriate penal action, if Plagiarism is found in the academic, research, project work, journal publication, etc. of the Institutions. Each Institution shall have a Plagiarism Software to check the integrity of the work of the students and Faculty by ensuring that all content is unique.

11.7

If any of the information mentioned in the Affidavit is proved as false, legal action including penal action shall be initiated on the deponent.

11.8

In case of Institutions where FDRs were encased before the date of maturity or not depositing the required Security Deposit at the time of LoA, a penalty of 10% of the value of the FDR shall be imposed. However, Institutions that had not created FDR/created FDR for lesser duration/ lesser amount than prescribed at the time of LoA have to create the same accordingly as specified in the Approval Process Handbook.

11.9

Penalty amount shall be paid online to the Council as per the instructions.

12.

Complaint Cases.

- All Institutions shall have Grievance Redressal mechanism as notified by the Council.

In case of receipt of any complaint(s) about an Institution, the same shall be processed by Public Grievance Redressal Cell (PGRC), AICTE.

The complaint shall be placed before a Standing Complaint Scrutiny Committee (SCSC) and the Complainant may be called (at his/ her own cost), if necessary. Based on the recommendation of SCSC, a warning or Show Cause Notice may be issued to the Institution or EVC may be conducted and processed further as per Clause 6.3.b of these Regulations. If necessary, the complainant may be called to appear before Standing Hearing Committee at his/ her own cost.

As per CVC guidelines Anonymous/ Pseudonymous complaints shall not be processed.

13.

Implementation of punitive action.

- Under extraordinary circumstances, if Punitive action (except fine) is approved by the Council beyond 30th April of the Calendar year, the same shall be implemented for the next Academic Year only.

In an extraordinary circumstance, to implement the withdrawal of approval in the current Academic Year, students admitted shall be shifted to the nearby AICTE approved Institutions in consultation with the concerned University/ Board/ State Government/ UT.

14.

Procedure for restoration against punitive action except in case of Withdrawal of Approval.

- Institutions shall have to make an application for restoration of intake and the same shall be processed as specified in the Approval Process Handbook.

15.

TER Charges for conducting an additional Scrutiny/ Expert Visit/ Standing Hearing/ Standing Appellate Committee.

- In an extraordinary circumstance, if an additional Scrutiny/ Expert Visit Committee has to be conducted inclusive of the Court directions to any type of Institutions, the Applicant has to pay the TER Charges as specified in the Approval Process Handbook.

In an extraordinary circumstance, if an additional Standing Hearing Committee/ Standing Appellate Committee has to be conducted based on the Court directions to any type of Institutions, then the Applicant has to pay the TER Charges as specified in the Approval Process Handbook.

16.

Social Responsibility.

- As a part of discharging social responsibilities, all Technical Institutions approved by the Council are expected to conduct National Skill Qualification Framework (NSQF) complied Skill Development Courses to give training to a minimum of 120 students per year. These Programmes shall be conducted based on the needs of the local community where the Institution is located.

17.

Conduct of any other Academic Courses.

- The Institutions may conduct Academic Courses of any other Regulatory Body using the existing facilities in excess or by creating additional facilities as per the provisions laid down in the norms and standards of the respective Regulatory Body without affecting the quality of education prescribed by both the Regulatory Bodies after taking NOC from the Council following the procedure specified in the Approval Process Handbook. However, the Applicant has to make Material/ Non-Material amendment of the Building Plan, Site Plan, etc. approved by the concerned Competent Authority to suit the requirements of the new Programme.

18.

Power delegated to Chairman of AICTE.

- Council has delegated the power to the Chairman of AICTE for taking decision on urgent matters that needs to be communicated to the Institutions in between period of two Executive Committee/ Council meetings. However, such cases shall be placed before the next Executive Committee/ Council for ratification.

19.

Interpretation.

- Any question arising out of the interpretation of these Regulations shall be decided by the Council and the decision of the Council shall be binding and final.

20.

Power to relax.

- The Council shall in exceptional cases, for removal of any hardship or in the national interest or such other reasons to be recorded in writing, relax any of the provisions of these Regulations in respect of any class or category of Institutions.

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Translation